

25CHCV03191 25CHCV03191

County: los-angeles

Division: Civil Law and Motion

Department: F46

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PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

Motion filed on April 14, 2026.

MOVING PARTY: Christian Valdivia (Plaintiff)

RESPONDING PARTY: Freddy Garrido (Defendant)

NOTICE: OK

RELIEF REQUESTED: Plaintiff seeks leave to file a Second Amended Complaint.

RULING: Granted.

BACKGROUND

On March 9, 2026, Plaintiff filed the operative First Amended Complaint. On March 12, 2026, Defendant filed an Answer. On April 14, 2026, Plaintiff filed this motion, supported by the declaration of Brandon Simanian and a copy of the proposed Second Amended Complaint. No timely opposition nor reply was filed. Trial is scheduled for August 28, 2028.

DISCUSSION

The Court may allow a party to amend a pleading in furtherance of justice and on such terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) A motion for leave to amend must include a copy of the proposed amended pleading and identify the allegations proposed to be added or deleted by page, paragraph, and line number. A supporting declaration must specify the effect of the amendment, why it is necessary and proper, when the facts giving rise to it were discovered, and why amendment was not requested earlier. (Cal. Rules of Court, rule 3.1324(a), (b).)

Here, Plaintiff attached the proposed Second Amended Complaint and explains that the amendments correct the alleged location of the incident and add allegations concerning Defendant's conduct following the collision. (Mot. at 8:5-6.) The motion does not identify each addition or deletion by page, paragraph, and line number. The supporting declaration also does not state when the facts giving rise to the amendments were discovered or adequately explain why amendment was not requested earlier. The motion therefore does not fully comply with rule 3.1324.

The proposed amendments nevertheless concern the same incident, add no new parties, and do not fundamentally change the action. (Simanian Decl. ¶ 4.) Defendant filed no opposition, trial is approximately two years away, and no prejudice is apparent. In light of the liberal policy favoring amendment, the motion is granted. Plaintiff's counsel is advised that future filings must comply with all applicable requirements of the California Rules of Court and the Code of Civil Procedure.

CONCLUSION

Plaintiff's motion for leave to file a Second Amended Complaint is GRANTED. Plaintiff shall file and serve the proposed Second Amended Complaint attached as Exhibit A to the motion within 10 days of service of notice of this ruling. Defendant shall respond within the time provided by law.